BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW; HOPE PSYCHOTHERAPY, INC.; and DOES 1-10, inclusive,** Defendants.	Case No. 3:26-cv-07504-LJC **ADMIN. MOTION TO CONFORM PLAINTIFF'S NAME ON THE DOCKET** [Civil L.R. 7-11] Judge: Hon. Lisa J. Cisneros

ADMINISTRATIVE MOTION TO CONFORM

PLAINTIFF'S NAME ON THE DOCKET

TO THE COURT AND TO SHANNON SMITH, LCSW, AND HOPE PSYCHOTHERAPY, INC., THROUGH COUNSEL:

Plaintiff **Brendan Ngwa Nforbi**, appearing in propria persona and presently identified on this docket as Brendan Ngehsi Newanforbi, moves under Civil Local Rule 7-11 for an order conforming the docket name. This is Plaintiff's request. It is not a Civil L.R. 7-12 stipulation.

I.

RELIEF REQUESTED

The Clerk shall amend the docket, the short title, the CM/ECF party record, and the caption of this action so that Plaintiff is identified as **Brendan Ngwa Nforbi** — first name **Brendan**, last name **Ngwa Nforbi** — matching Plaintiff's existing PACER account (login bngwanforbi). This is a clean swap of the party name. Subsequent papers shall use that caption.

II.

THE TWO NAMES ARE ONE PERSON

Brendan Ngwa Nforbi is the same natural person as Brendan Ngehsi Newanforbi and as Ngwa Nforbi. The names are one person. This motion does not add, drop, or substitute any party. It is not an amendment of any claim, defense, or operative pleading. It is not a Fed. R. Civ. P. 25 substitution.

III.

THE ECF HELP DESK CANNOT LINK THE ACCOUNT UNTIL THE DOCKET MATCHES

On September 1, 2026 the CAND ECF Help Desk advised that it cannot link this action to PACER login bngwanforbi until the docket reflects the name on the account, and that a name change requires a request to the Court. Exhibit A is that reply. After the Clerk updates the party name, Plaintiff will ask the Help Desk to link that login for pro se e-filing. This motion does not itself activate e-filing.

Plaintiff recently learned that this District permits pro se litigants to e-file. Good cause exists to conform the docket name so that login can be linked. Among other things, e-filing will prevent

the delay inherent in mailing papers to the Clerk and to counsel, wherever those papers are sent from; it will put each paper on the docket the day it is filed rather than days later in the mail; it will let counsel of record receive service the same day; and it will let Plaintiff prosecute these five open N.D. Cal. actions on one account instead of mailing five copies of every paper. Mailing also carries weekend and holiday lag and the risk that a paper reaches the Clerk after the date it was sent.

IV.

CIVIL L.R. 7-11

Conforming a pro se party's docket name so one PACER account can be linked is a miscellaneous administrative matter. A 35-day noticed motion is unnecessary. Civil L.R. 7-11(a) requires a proposed order and either a Civil L.R. 7-12 stipulation or a declaration explaining why a stipulation could not be obtained. Plaintiff conferred with Blaze Van Dine and Eric Martinez. They stated Defendants will not oppose this request if the paper makes clear that the two name forms are one person. Section II and the accompanying declaration do that. They did not agree to a Civil L.R. 7-12 stipulation. The accompanying declaration satisfies Civil L.R. 7-11(a).

V.

NOTHING ELSE MOVES

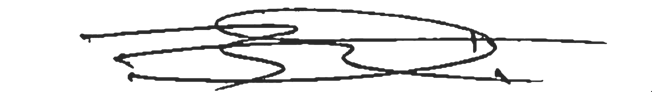
All prior filings, proofs of service, acceptances of service, orders, and related-case determinations remain effective as to the same person. No party need be re-served. **No other date or deadline in this action is modified.** This motion is not a stay of discovery. Expressly unchanged, without limitation: Defendants' September 21, 2026 deadline to answer or otherwise respond (from the August 31, 2026 accepted service); the October 15, 2026 joint case management statement; the October 22, 2026 initial case management conference.

Nothing in this motion is a waiver of any claim, defense, objection, or right except the identity of Plaintiff as the same natural person and the docket name requested in Section I.

A declaration, Exhibit A, and a proposed order accompany this motion.

Dated: September 14, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

(presently on this docket as Brendan Ngehsi Newanforbi)

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW; HOPE PSYCHOTHERAPY, INC.; and DOES 1-10, inclusive,** Defendants.	Case No. 3:26-cv-07504-LJC **DECLARATION OF BRENDAN NGWA NFORBI ISO ADMINISTRATIVE MOTION** [Civil L.R. 7-11] Judge: Hon. Lisa J. Cisneros

DECLARATION OF BRENDAN NGWA NFORBI

I, **BRENDAN NGWA NFORBI**, declare as follows:

1. I am the Plaintiff in this action. I am over eighteen. I make this declaration from personal knowledge in support of Plaintiff's Civil L.R. 7-11 administrative motion to conform the Plaintiff name on this docket. If called, I could and would testify competently to these facts.

2. I am the same natural person as Brendan Ngehsi Newanforbi and as Ngwa Nforbi. The names are one person. I am not asking the Court to add, drop, or substitute any party.

3. My PACER login is bngwanforbi. On September 1, 2026 I asked the CAND ECF Help Desk

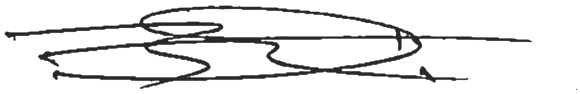
to link that account to this action and to my other N.D. Cal. actions. The Help Desk replied the same day that it cannot link an action to that account until the docket reflects the name on the account, and that a name change requires a request to the Court. A true copy of that reply is Exhibit A.

4. I conferred with Blaze Van Dine and Eric Martinez of Sims, Lawrence & Broghammer, counsel for Defendants. They stated Defendants will not oppose a request that the Clerk identify Plaintiff as **Brendan Ngwa Nforbi** so long as the paper makes clear that the two name forms are one person. This motion and this declaration do that. They did not agree to enter a Civil L.R. 7-12 stipulation. That is why this motion is not accompanied by a stipulation.

5. I recently learned that this District permits pro se litigants to e-file. That is why I asked the ECF Help Desk on September 1, 2026 to link PACER login bngwanforbi. Until the docket name matches, I must mail papers. Mailing introduces delay wherever the papers are sent from: transit time to the Clerk and to counsel, weekend and holiday lag, and the risk that a paper reaches the Clerk or counsel after the date I sent it. I have five open actions in this District. Conforming the name so I can e-file will avoid that delay, let the Clerk and counsel receive papers the same day, and let me use one PACER account instead of mailing each paper five times.

6. I am not asking the Court to move any deadline, hearing, conference, pending motion, or discovery obligation. After the Clerk updates the party name I will ask the ECF Help Desk to link PACER login bngwanforbi for pro se e-filing.

I declare under penalty of perjury that the foregoing is true and correct. Signed on September 14, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

(presently on this docket as Brendan Ngehsi Newanforbi)

EXHIBIT

A

CAND ECF Help Desk reply (September 1, 2026)

Cannot link PACER login bngwanforbi until the docket reflects the name on the account; name change requires a request to the Court.

Pro se e-filing — one account, two name forms — Brendan Ngehsi Newanforbi / Ngwa Nforbi

ECFHELPDESK <CAND_ECFHELPDESK@cand.uscourts.gov> Tue, Sep 1, 2026 at 12:06 PM
To: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

We are unable to merge the two name into one account since the case has to reflect what is listed on the complaint. On each complaint, the name is different. If you wish to change the names on the cases, you may submit a request to the court to do so. After that is ruled on and changed on the docket, then you may ask for these cases to be merged into one e-filing account. If you have further questions, you may reach out to the docket clerk for you case.

https://cand.uscourts.gov/about-court/clerks-office/civil-docketing-assignments

Thank you,

~The ECF Help Desk for the Northern District of California
https://ecf.cand.uscourts.gov

ECF TIP:
You should only scan documents which exist only in paper. All others should be converted to PDF directly from your computer.
For more info, please see our FAQ sections.

From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Tuesday, September 1, 2026 8:00 AM
To: ECFHELPDESK <CAND_ECFHELPDESK@cand.uscourts.gov>
Subject: Pro se e-filing — one account, two name forms — Brendan Ngehsi Newanforbi / Ngwa Nforbi

CAUTION - EXTERNAL:

Greetings!

I am the plaintiff, in pro per. I use one PACER account. The dockets list me under two name forms. They are the same person. Please activate or link this account to all of the cases below.

PACER login: bngwanforbi
Email: bnn.cdl@gmail.com
Phone: (209) 801-4442

Name on some dockets: Brendan Ngehsi Newanforbi

- 3:26-cv-07504-LJC
- 3:26-cv-09249-ASK
- 4:26-cv-05953-ASK

Name on other dockets: Ngwa Nforbi / Nforbi

- 3:26-cv-08271-PHK
- 3:26-cv-08272-LJC

On the PACER “Most Recent Case” box I am entering 3:26-cv-07504. Please link the rest to this same account.

Thank you,

Brendan Ngehsi Newanforbi / Ngwa Nforbi
(209) 801-4442
bnn.cdl@gmail.com

CAUTION - EXTERNAL EMAIL: This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW; HOPE PSYCHOTHERAPY, INC.; and DOES 1-10, inclusive,** Defendants.	Case No. 3:26-cv-07504-LJC **[PROPOSED] ORDER CONFORMING PLAINTIFF'S NAME ON THE DOCKET** [Civil L.R. 7-11] Judge: Hon. Lisa J. Cisneros

[PROPOSED] ORDER

The Court has considered Plaintiff's Civil L.R. 7-11 administrative motion to conform Plaintiff's name on the docket, the supporting declaration, and Exhibit A. Good cause appearing — including so that the docket will match PACER login bngwanforbi, the ECF Help Desk may link that account for pro se e-filing, and Plaintiff may file and serve without the delay inherent in mailing papers to the Clerk and to counsel — IT IS ORDERED that:

1. The Clerk shall amend the docket, the short title, the CM/ECF party record, and the caption of this action so that Plaintiff is identified as **Brendan Ngwa Nforbi** (first name **Brendan**, last name **Ngwa Nforbi**), matching PACER login bngwanforbi. Subsequent papers shall use that caption.

2. **Brendan Ngwa Nforbi** is the same natural person previously identified on this docket as Brendan Ngehsi Newanforbi. This Order does not add, drop, or substitute any party and does not amend any claim or defense.

3. All prior filings, service, acceptances of service, and orders remain effective. No party need be re-served by reason of this Order.

4. No deadline, hearing, conference, pending motion, or discovery obligation is modified.

IT IS SO ORDERED.

Dated: _____

_____

Hon. Lisa J. Cisneros

United States Magistrate Judge

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendant

PROOF OF SERVICE

/

I hereby certify that on September 14, 2026, I served a copy of the attached

Civil L.R. 7-11 Administrative Motion to Conform Plaintiff's Name on the Docket; Declaration; Exhibit A; [Proposed] Order (September 14, 2026),

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Blaze Van Dine, Esq.
Eric T. Martinez, Esq.
SIMS, LAWRENCE & BROGHAMMER
1478 Stone Point Drive, Suite 450
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blaze@sims-law.net
emartinez@sims-law.net
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Counsel for Shannon Smith, LCSW, and HOPE Psychotherapy, Inc.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona